



Procedure No: EXP202406716 (PS/00356/2024)

Appeal No: RR/00735/2024

Examined the appeal filed by the entity DIGITAL PHOTO IMAGE, S.A. with NIF: A60984259 (hereinafter, the appellant) against the resolution issued by the Director of the Spanish Agency for Data Protection on 24/10/24, in procedure EXP202406716 (PS/00356/2024), for violation of Law 34/2002, of July 11, on Information Society Services and Electronic Commerce (LSSI) and based on the following:

FACTS

FIRST: On 24/10/24, the Director of the Spanish Agency for Data Protection issued a Resolution in Procedure EXP202406716 (PS/00356/2024), opened against the entity DIGITAL PHOTO IMAGE, S.A. with NIF: A60984259, for the violation of Article 21.1 of the LSSI, classified as minor in Article 38.4.d) of the aforementioned regulation, with a fine of 20,000 euros (twenty thousand euros), for sending advertising emails without having been requested or expressly authorized.

SECOND: As proven facts in the procedure, it was recorded that:

First: From the documentation provided by the claimant, it is evident that the entity Digital Photo Image S.A. is responsible for the processing of personal data in relation to the electronic communications sent by the "Nikonistas" platform via the email address no-reply@nikonistas.com.

Second: From the documentation provided by the claimant, it is noted that, on 30/01/24, the claimant requested, through the contact form on the Nikonistas website (www.nikonistas.com), to unsubscribe from the club and to cease the sending of advertising emails, as evidenced by the communication received by the claimant from the address no-reply@nikonistas.com with the automatic acknowledgment message.

Third: From the documentation provided by the claimant, it is noted that, on 14/02/24 and 21/02/24, the claimant reiterated their request for cancellation and deletion of their personal data, as they continued to receive promotional emails, as evidenced by the copy of the communication received from the address no-reply@nikonistas.com with the same automatic acknowledgment message.

Fourth: From the documentation provided by the claimant, it is noted that they continued to receive electronic communications with advertising content from the defendant entity. The following emails are submitted as evidence, sent from the address no-reply@nikonistas.com to the claimant's email address on the days, 29/02/24; 14/03/24; 25/03/24; 27/03/24; and 05/04/24.

Fifth: From the documentation provided by the claimant, it is noted that they also attempted to exercise their data cancellation rights by sending a direct email to the address club@nikonistas.com on 05/03/24, in which they reiterated their request for cancellation and deletion of their personal data. A copy of the sent email is provided.

Sixth: All advertising emails sent by Digital Photo Image S.A. from the address no-reply@nikonistas.com include the following standard message at the bottom: "You can exercise your rights of access, rectification, cancellation, opposition, deletion, limitation, and portability by modifying your personal data in 'edit my profile', after accessing www.nikonistas.com or the contact form. Do not reply to this email, this sender does not accept incoming mail, so you will not receive a response."

THIRD: On 19/11/24, a written appeal for reconsideration was received by this Agency, presented by the appellant, in which the following was stated:

"STATEMENT OF FACTS

FIRST.- On October 24, 2024, we became aware of the resolution issued by the AEPD in the sanctioning procedure EXP202406716 (PSI 003561 2024), initiated as a result of the complaint filed by A.A.A., who requested to unsubscribe from our commercial communications.

However, we were only notified of the resolution when it was already in the sanction phase, which has caused us serious defenselessness, as we were not given the opportunity to present allegations or defend ourselves in a timely manner during the development of the procedure.

SECOND.- The reason for our lack of prior knowledge about the complaint lies in the fact that the notification was made to the wrong email address (nikonistas.com), which does not correspond to the

valid address for receiving administrative notifications from our entity. The correct email address is ***EMAIL.1 and likewise, our physical postal address is listed everywhere and has been since the beginning of the procedure, as it appears in the same administrative resolution that served as the basis for the initiation of the procedure. Notwithstanding the above, notifications were never attempted to be made to the aforementioned address, nor was there an effort to check the database for the email address enabled for administrative notifications. Therefore, we have been unable to exercise our right of defense or to know in a timely manner the facts attributed to us, which constitutes a clear violation of our procedural guarantees.

MOTIVATION OF THE APPEAL

1. Lack of adequate notification and serious defenselessness:

Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations, establishes in its Article 40 that notifications must be made to the electronic address that appears in the

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registration of the Administration or to which it has been expressly provided by the recipient entity. However, the notification of the resolution was sent to nikonistas.com, an email address that does not correspond to our entity.

This lack of adequate notification has resulted in our having no knowledge of the ongoing administrative procedure until the date of the resolution. Thus, we were only informed when the file was already in the sanction phase, which has caused serious defenselessness for our entity, as we have not had the opportunity to present our allegations and exercise our defense in the previous phases of the procedure.

We copy and paste for your information what is stated on our website to formulate the request for cancellation, annulment, deletion, and rectification of users' personal data (...)

The defenselessness that has been caused is even more serious considering that Ms. A.A.A. requested to unsubscribe from our commercial communications and that all her personal data has already been canceled by our entity, in compliance with the current legislation on data protection as of May 1, 2024. The lack of notification at an appropriate time has hindered our ability to provide this crucial information during the development of the procedure. We attach a screenshot from our database at the time of the cancellation of the same:

2. Cancellation of the personal data of Ms. A.A.A.:

Additionally, we want to highlight that the personal data of Ms. A.A.A. was completely canceled on May 16, 2024, in accordance with the provisions of Regulation (EU) 2016/679 of the European Parliament and of the Council, of April 27, 2016 (GDPR) and Organic Law 3/2018, of December 5, on the Protection of Personal Data and guarantee of digital rights (LOPDGDD). This cancellation was formalized and confirmed by a cancellation certificate, which we attach to this appeal.

Since Ms. A.A.A. is no longer in our database, as of May 16, 2024, we are not in a position to send her commercial communications, which makes the imposed sanction unnecessary and disproportionate.

For all the above, we request the following:

1. The annulment of the notification of the resolution of the sanctioning procedure, as it has not been carried out in accordance with the legal guarantees of notification. The notification must be made to the correct email address of the entity or to the physical address listed in all locations of our company. The retroaction of the procedure to carry out the notification in accordance with the established legal procedures, granting a new period to exercise our right of defense and present allegations, if we deem it appropriate.

The filing of the sanctioning procedure due to the fact that the personal data of Ms. A.A.A. has been effectively canceled, in compliance with the legal obligations regarding data protection. In this regard, we attach the cancellation certificate that verifies this.

Attached documentation: Certificate of cancellation of the personal data of Ms. A.A.A., issued by our

entity. Proof of the correct email address of our entity: (...) from the DEHU page. Administrative notifications.

Proof that our email address has not been notified by you from January 1, 2024, until the date of formalization of this appeal, but by other bodies that know perfectly well what our address is for administrative notifications from the DEHU page. Administrative notifications.

Along with the appeal document, the following documentation is presented:

- Screenshot of a registration form where the following can be read: "Registration date: 04/16/2006

Unsubscription date: 05/16/2024

Name: A.A.A. 1st Surname: (...) 2nd Surname: <>

Address: <> City: Valencia

Province: Coruña Email: ***EMAIL.2"

- Copy of a document titled "Certificate of Deletion of Personal Data," dated 05/16/24 and addressed to the claimant, informing that they have proceeded to block her personal data.

LEGAL GROUNDS

I

Competence.

The Director of the Spanish Agency for Data Protection is competent to resolve this appeal, in accordance with the provisions of Article 123 of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (LPACAP) and Article 43.1, second paragraph, of the LSSI.

II

Response to the allegations

In relation to the statements made in the appeal, the following should be noted:

First: Regarding the alleged lack of adequate notification

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The claiming entity argues that it was unaware of the procedure until the notification of the resolution that concluded the procedure, due to the notifications being sent to an incorrect email address, which allegedly violated its right to defense and caused serious defenselessness. However, this assertion does not align with the reality of the facts or the applicable regulatory framework, and let us see why. First, Article 14.2 of the LPACAP, regarding the "Right and obligation to interact electronically with Public Administrations," establishes that the following subjects are obliged to interact electronically with Public Administrations for the completion of any administrative procedure: a) Legal entities. b) Entities without legal personality. c) Those who engage in a professional activity that requires mandatory registration, for the procedures and actions they carry out with Public Administrations in the exercise of that professional activity. In any case, this group will include notaries and property and commercial registrars. d) Those who represent an interested party who is obliged to interact electronically with the Administration. e) Employees of Public Administrations for the procedures and actions they carry out with them by virtue of their status as public employees, in the manner determined by regulation by each Administration.

On the other hand, Article 41 of the LPACAP establishes that the Administration will preferably carry out notifications by electronic means and, in any case, when the interested party is obliged to receive them through this channel.

Article 43.1 of the LPACAP establishes that notifications by electronic means will be carried out through appearance at the electronic headquarters of the acting Administration or Agency, and for the purposes provided, access by the interested party or their representative to the content of the notification will be understood as appearance at the electronic headquarters. The second paragraph of the same article adds that a notification will be considered validly carried out when the receipt or access to the content by the interested party is recorded.

Furthermore, Article 42 of Royal Decree 203/2021, of March 30, which approves the Regulation for the

operation and functioning of the public sector by electronic means, states that the notifications by electronic means provided in Article 43.1 of the LPACAP will be carried out through appearance at the electronic headquarters or associated electronic headquarters of the Administration, public agency, or public law entity, through the Single Enabled Electronic Address (DEHU).

In our case, it is certified in the certificate issued by the DEHU that the notification of the initiation agreement of the sanctioning file, EXP202406716 (PS/00356/2024), was duly made available to the recipient entity on 09/13/24, at 11:05 hours, being accessed and accepted at the destination on the same day, 13th, at 12:51 hours by the legal representative of DIGITAL PHOTO IMAGE S.A., B.B.B., Document: ***NIF.1 through identification with a valid electronic certificate.

Therefore, the fact that the notification was effectively accepted and accessed on the same day it was made available rules out any possibility of lack of

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knowledge or defenselessness, given that it is established that the entity had timely access to the content of the notification.

Furthermore, it should be highlighted and kept in mind that the resolution of the indicated sanctioning procedure was made available on 10/24/24 at 15:16 hours in the electronic headquarters, with access to the content of the notification occurring on the same day, 10/24/24 at 15:22 hours by the legal representative of DIGITAL PHOTO IMAGE S.A., Mr. B.B.B., Document: ***NIF.1 through identification with a valid electronic certificate.

Second: Regarding the alleged incorrect notification address:

The allegation that the notifications were directed to an incorrect email address (nikonistas.com) is unfounded and does not relate to the facts established in the procedure, as the notification of the initiation of the file was not made via email to the address indicated by the appellant, but rather through the electronic system enabled in accordance with current regulations, specifically designed to ensure the security, traceability, and legal validity of administrative notifications.

Let us remember that Article 42 of RD 203/2021 states that notifications by electronic means provided for in 43.1 of the LPACAP will be carried out through appearance at the electronic headquarters or associated electronic headquarters of the Administration via the DEHU, and that Article 14.2 of the LPACAP establishes that legal entities are obliged to interact electronically with Public Administrations for the completion of any procedure, including the receipt of notifications, being the responsibility of the obligated party to keep their access updated and to regularly check notifications in that system.

However, as previously noted, the notification of the initiation of the file was accessed within the established timeframe, demonstrating that the entity had the necessary electronic means and that there was no error in the notification address. Furthermore, the legal representative accessed the content through a secure system (DNle/certificate), which reinforces the validity of the notification made.

Notwithstanding the above, Article 41.6 of the LPACAP also indicates that, regardless of whether the notification is made on paper or by electronic means as was the case, Public Administrations will send a notice to the electronic device and/or to the email address of the interested party that they have communicated, informing them of the availability of a notification in the electronic headquarters of the Administration or in the DEHU, but it also indicates that the lack of this notice will not prevent the notification from being considered fully valid.

Therefore, according to this provision, the notice, not the notification, of the receipt of a notification at the electronic headquarters will be sent to the electronic device or the email address that the interested party has voluntarily communicated to the Administration for this purpose, with the interested party being solely responsible for having access to the device or the email address, and in the event that they cease to be operational or access is lost, the interested party would be...

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obligated to inform the Administration that the notice is not to be made through such means due to impossibility of access.

Therefore, the omission of this obligation by the interested party cannot be attributed to the Administration, which is exempt from liability for the possible sending of notices to inoperative means. It should also be noted that the validity of the notification does not depend on the notice, but on the correct availability of the same in the corresponding electronic headquarters, in this case, the DEHU. On the other hand, the entity claims that it could not exercise its right to defense, which would constitute a violation of Article 24 of the Spanish Constitution. However, such assertion lacks foundation given that:

a) The notification of the initiation agreement was valid and in accordance with the law, as has already been demonstrated.

b) The entity had full knowledge of the procedure from the initial moment, which allowed it to participate and present allegations within the established deadlines. The lack of action or diligence in exercising its rights cannot be attributed to the Administration, as it fulfilled its legal obligations regarding notifications, as evidenced by the Certificate from the DEHU included in the file.

Third: Regarding the alleged cancellation of the claimant's data on 16/05/24.

The appellant argues that the claimant's personal data was canceled on that date, accompanying a supposed cancellation certificate as proof. However, from the documentation provided by the claimant, it is evidenced that she exercised her right to object to receiving commercial communications on several occasions, the first being on 30/1/24, without her request being attended to, as she continued to receive advertising emails until at least 05/04/24.

According to the documentation provided by the claimant, on 30/01/24 she exercised, for the first time, her right to object to receiving further commercial communications through the contact form indicated on the entity's own website, reiterating her objection request on two more occasions, on 14/02/24 and 21/02/24, as indicated in the information included in the commercial emails received:

"You can exercise the rights of access, rectification, cancellation, opposition, suppression, limitation, and portability by modifying the personal data in 'edit my profile', after accessing www.nikonistas.com or the contact form. Do not reply to this email, this sender does not accept incoming mail, so you will not receive a response."

Receiving an acknowledgment of receipt from the entity in each of the attempts, such as the one received when she tried to object on 30/01/24:

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Subject: Nikonistas: Support inquiry sent

Date: January 30, 2024, 19:20

To: ***EMAIL.2

"Nikonistas: Support inquiry sent. Thank you for contacting us. Regarding your inquiry, one of our support agents will send you a response with the appropriate information as soon as possible. Name and surname: A.AA.. Email: ***EMAIL.2

Description of the inquiry: I request to unsubscribe from Nikonistas Club and please stop sending me emails."

She also attempted to exercise her right on 05/03/24 by sending an email to the address club@nikonistas.com, which appears as the contact email in the "Privacy Policy" of the website, but continued to receive unwanted commercial communications, according to the documentation provided, on the days 14/03/24, 25/03/24, 27/03/24, and 05/04/24, which clearly violates Article 21.1 of the LSSI.

Regarding the alleged cancellation of the claimant's data with a cancellation date of 16/05/24, this fact cannot exempt the entity from responsibility as it occurs after three attempts in which the claimant requests that no further commercial communications be sent to her, the first attempt being three and a half months before the alleged cancellation, on 30/01/24, and during this time period, the appellant has been failing to attend to the right, with the sending of 5 advertising emails, even acknowledging receipt of the requests.

Consequently, after a detailed analysis of all the aforementioned, it is concluded that the allegations made in her appeal lack sufficient substance to undermine the established and duly proven facts in the administrative file.

In view of the cited provisions and others of general application, the Director of the Spanish Agency for Data Protection

RESOLVES:

FIRST: TO DISMISS the appeal for reconsideration filed by the entity DIGITAL PHOTO IMAGE, S.A. with NIF: A60984259, against the resolution issued by the Director of the Spanish Agency for Data Protection, on 24/10/24, in the procedure EXP202406716 (PS/00356/2024).

SECOND: NOTIFY this resolution to DIGITAL PHOTO IMAGE, S.A.

In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative route, an administrative contentious appeal may be filed within two months from the day following the notification of this act as provided in Article 46.1 of Law 29/1998, of July 13, regulating the Contentious-Administrative Jurisdiction, before the C/ Jorge Juan, 6

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Contentious-Administrative Chamber of the National Court, in accordance with the provisions of Article 25 and Section 5 of the Fourth Transitional Provision of the aforementioned legal text.

Mar España Martí

Director of the Spanish Agency for Data Protection.

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